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FISCAL COURT AGENDA ITEM REQUEST & COUNTY ATTORNEY REVIEW FORM

September 9, 2026

Today's Date

KOC-26-920-040 Zoning Map Amendment 7511 HWY 329, Crestwood

Name of Document and/or Agenda Item

Ryan Fischer, Planning & Development – rfischer@oldhamcountyky.gov / 502-222-1476

Submitted by (Name – Department - Committee) (phone / email)

Does this require Fiscal Court's approval? X yes no

October 20, 2026

Fiscal Court Presentation Date

Who will be presenting Item to Fiscal Court? Cayley Crum, Planning & Development

(Ex: Committee, Chairperson, Department, Staff, Name)

What action (motion) are you requesting of the court?

Zoning Map Amendment: First Reading – October 6, 2026; Second Reading – October 20, 2026

*** REVIEWED AND APPROVED AS TO FORM & LEGALITY BY COUNTY ATTORNEY ***

D Berry Baxter
(Signature)

D. Berry Baxter, Oldham County Attorney

09/09/2026

Date

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OLDHAM COUNTY
PLANNING & DEVELOPMENT SERVICES
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Date: September 9, 2026

TO: David Voegele, Judge-Executive
100 W Jefferson Street
LaGrange, KY 40031

RE: Ordinance No. KOC-26-920-040
7511 HWY 329 Addition
7511 Highway 329, Crestwood
Zoning Map Amendment

Dear Judge Voegele,

In an effort to make sure items are heard by the legislative bodies in a timely manner, we are sending you notice of this approved docket item.

On August 25, 2026, the Oldham County Planning and Zoning Commission heard at a public hearing, a request for a Zoning Map Amendment on the above referenced docket. The motion to approve the Zoning Map Amendment carried. The minutes will be approved at the Planning Commission meeting on September 22, 2026, and will be sent following approval.

Please tentatively place this item on the docket for the first reading on **October 6, 2026** and for the second reading/public hearing on **October 20, 2026**. The legal description of the proposed zoning map amendment is enclosed.

Thank you for your assistance and please advise us as to other information needed.

Sincerely,

Ryan C. Fischer

Ryan C. Fischer
Senior Planner
Oldham County Planning and Development

Cc: Oldham County Fiscal Court Clerk

COMMONWEALTH OF KENTUCKY
OLDHAM COUNTY
ORDINANCE NO. KOC 26-920-040

AN ORDINANCE RELATING TO A CHANGE IN THE OLDHAM COUNTY ZONING MAP REZONING TWO TRACTS OF LAND TOTALING 1.2383 ACRES OF LAND LOCATED AT 7511 HIGHWAY 329, CRESTWOOD, KENTUCKY FROM THE EXISTING C-2 COMMUNITY BUSINESS DISTRICT TO C-3 GENERAL BUSINESS DISTRICT ZONING CLASSIFICATION.

* * * * *

WHEREAS, the Oldham County Planning & Zoning Commission on application of Straight Grain, LLC desires to change the Oldham County zoning map in reference to two tracts of land totaling 1.2383 acres located at 7511 Highway 329, Crestwood, Kentucky, and seeks a zoning map change for the 1.2383 acres from the existing C-2 Community Business District to C-3 General Business District zoning classification; and,

WHEREAS, the Oldham County Planning & Zoning Commission did advertise and conduct a public hearing on the issue of rezoning the hereinafter described 1.2383 acres on August 25, 2026 (Docket PZ-26-020), and at the conclusion of said hearing, did find that the map amendment is in agreement with the Comprehensive Plan and recommended to the Oldham County Fiscal Court that said zoning classification on the hereinafter described 1.2383 acres be changed as requested; and,

WHEREAS, the Oldham Fiscal Court did advertise and conduct a public hearing on the recommended zoning map change, and Fiscal Court having made the necessary findings and conclusions justifying said zoning map change and said Fiscal Court having voted to adopt the zoning map change at its regular meeting

conducted October 20, 2026.

NOW, THEREFORE, BE IT ORDAINED BY THE FISCAL COURT OF OLDHAM COUNTY, COMMONWEALTH OF KENTUCKY, THAT:

The Oldham County zoning map controlling the zoning classification of the hereinafter described 1.2383 acres from the existing C-2 Community Business District to C-3 General Business District classification located at 7511 Highway 329, Crestwood, Kentucky. This zoning map change is accompanied by and contingent upon any and all binding elements to be recorded as restrictions on the land and its usage with the Oldham County Court Clerk at La Grange, Kentucky.

TRACT NO. 1:

BEING Tract 1 on the Minor Plat attached to Deed dated November 2, 1987, of record in Deed Book 314, Page 465, and more particularly described as follows:

Beginning at an iron pin in the north right of way line of Highway 329 as conveyed to the Commonwealth of Kentucky as recorded in Deed Book 71, Page 381, in the Office of the Clerk of Oldham County, Kentucky, said point being in the east line of the tract of land conveyed to Robert J. Noel and Mary Noel, his wife, as recorded in Deed Book 141, Page 340 in the aforesaid clerk's office. Thence with the east line of Noel and with the fence 24 degrees 21' 45" E 194.71 feet to an iron pin, thence N 55 degrees 16' 53" W 132.74 feet to a pin in the east line of old Zaring Road, thence with the east line of Old Zaring Road S 35 degrees 58' 00" W 170.50 to a pin at the intersection of the east line of Old Zaring Road and the north right of way line of Highway 329, thence with the north line of Highway 319 S 46 degrees 16' E 172.74 feet to the point of beginning.

TRACT NO. 2:

The following described property being Tract 2 on the minor plat recorded in Deed Book 314, Page 462, in the Office of the Clerk of Oldham County, Kentucky, and more particularly described as follows:

Beginning at an iron pin in the North right-of-way line of Highway 329 as conveyed to the Commonwealth of Kentucky as recorded in Deed Book 71, page 381, in the Office of the Clerk of Oldham County, Kentucky; said point being in the east line of the tract of land conveyed to Robert J. Noel and Mary Noel, his wife, as recorded in Deed Book 141, Page 340, in the aforesaid Clerk's Office, thence with the East line of Noel aforesaid and with the fence, N 24 deg. 21' 45" E 194.70 feet to "THE TRUE POINT OF BEGINNING" of the description thence with the East line of Noel aforesaid and with the fence, N 24 deg. 21' 45" E 230.53 feet to a post; thence N 56 deg. 53' W 102.16 feet to a point in the East line of Old Zaring Road; thence with the East line of Old Zaring Road, S 31 deg. 57' W 224.17 feet to a point; thence S 55 deg. 16' 53" W 132.74 feet to the true point of beginning.

Being the same property conveyed to Tag Asset, LLC, a Kentucky Limited Liability Company, by Deed dated November 9, 2005, of record in Deed Book 851, Page 374, in the Office of the Clerk of the County Court of Oldham County, Kentucky.

Dated this ____ day of _____, 2026.

DAVID VOEGELE
Oldham County Judge/Executive

ATTEST:

Oldham County Fiscal Court Clerk

**MINUTES OF REGULAR MEETING
OLDHAM COUNTY
PLANNING AND ZONING COMMISSION
Tuesday, August 25, 2026**

At 9:00a.m., local time on the above date, this meeting of the Oldham County Planning and Zoning Commission, hereinafter called the Commission, was called to order in the Courtroom of the Oldham County Fiscal Court Building, La Grange, Kentucky, by Chair Katie Nasser.

Other Commission members present were:

Wayne Allen
Thomas Elder
Allen Hayes
Skip Miller

James Allison
Deborah Graham
Bob Klingenfus
Dave Servis

William Douglas
Berry Hampton
Debbie Kraus
Sue Ann Thompson

Others present and sworn in were Planning and Development Services Director Ryan Fischer, Planner Cayley Crum, Planner John Hine, and Oldham County Engineer Jim Silliman. County Attorney Berry Baxter was present for the meeting and Administrative Assistant Christy Edgar was the Secretary for the meeting.

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Approval of Minutes

Motion was made by Commissioner Elder and seconded by Commissioner Kraus to approve July 28, 2026; minutes as submitted with the following corrections. Motion carried by unanimous voice vote.

Corrections

- Page 3, 6th Bullet point down, change the word “tac” to “tax”.
- Page 4, 4th Sentence from bottom of page, change the word “capacities” to “capacity”.
- Page 5, Remove “and added two more binding elements”.
- Page 5, In the motion, add the word “and” between evidence testimony.
- Page 9, 5th Sentence from the bottom, change the word “imperious” to “impervious”.
- Page 16, 2nd Bullet point, add the word “have” before the word “been”.
- Page 18, 4th Bullet point, change the word “backup” to “back up”.
- Page 19, 12th Sentence from top of page, remove the word “are” and replace with the word “is”.
- Page 20, 5th Bullet point, change the word “too” to “to”.
- Page 22, In the motion, remove the word “be” and replace with “been”.
- Page 24, Remove “and added two more binding elements”.
- Page 26, In the vote section, under Absent add a “,” between Davis and Graham.

- Page 28, In the vote section, under Absent add a “,” between Davis and Graham.
- Page 29, In the vote section, under Absent add a “,” between Davis and Graham.
- Page 30, In the vote section, under Absent add a “,” between Davis and Graham.

.....
Secretary Christy Edgar called and read Docket:

DOCKET PZ-26-013 – An application has been filed by Newcomb Oil Co., LLC for Waivers of Section 280-110 Maximum Parking Regulations, and Section 180-020 Maximum Impervious Surface on property located at 7200 Hwy. 329, Crestwood. The property is 1.8-acres and zoned C-4, Highway Business District.

1. Introduction of the new information by staff and questions by the Commission:

Planner John Hine presented the following:

- Summary of the application.
- Case History (see Exhibit A, Staff Report dated August 25, 2026).
- Site history.
- Aerial Photos of the site.
- Photos of property.
- Received no letters of support or opposition.

Jim Silliman, Oldham County Engineer

- This disturbance area is less than an acre, so it does not fall under the requirements for post construction and construction site runoff ordinance.

Commissioner Servis asked, will the additional impervious surface create overflow toward the Jones Group Sign?

County Engineer Silliman replied, we will check on that.

Commissioner Thompson asked, why didn't the applicant get the waivers before they constructed the parking lot?

County Engineer Silliman replied, you will need to ask the applicant.

2. Presentation by the applicant or representative and others in support of the application:

Emily Wade, Dinsmore & Shohl, 101 S. Fifth Street, Louisville, was present and representing the applicant.

- My client expects an increase in business once the Clore Station project gets residents and needs additional parking for customers.
- The proposed parking expansion will provide additional parking for customers, improve circulation and reduce conflicts between vehicles entering and exiting the site.
- The proposed parking waiver minimally exceeds the regulations and so does the impervious area that the applicant is requesting.

Jake Cecil, Newcomb Oil Co., LLC, 951 Withrow Ct., Bardstown, was present and sworn in prior to presenting.

- It was an oversight on our part for construction of the parking lot and not knowing the approval process.
- We are willing to work with planning and engineering staff to provide some additional screening and other mitigation in response to that impervious waiver.
- We have owned the gas station for 20 years and over time we have seen increase in traffic to the site.
- We have issues with customer traffic backing up into the gas canopy areas and interfering with our deliveries.
- The additional parking lot will improve circulation throughout the site, separate back and front of store operations, and keep customer traffic, deliveries and employee parking separated.

3. Testimony and questions by those opposing the application: None

4. Questioning of the applicant and those opposing the application by the Commission:

Commissioner Douglas asked, do the center parking spaces have concrete curb around them?

Mr. Cecil replied, the center parking spaces are striped only and those are optional.

Commissioner Douglas asked, do you need those four parking spaces?

Mr. Cecil replied, the traffic to the store keeps increasing and the extra spaces would be useful.

Attorney Wade replied, the striping of the parking lot is not finished because once we found out that we needed to request the waivers the parking space striping stopped.

Commissioner Douglas asked, what would prevent the big trucks from parking in the center?

Attorney Wade replied, if this gets approved then we will finish the striping and that will deter the big trucks from parking in the center.

Commissioner Hayes asked, how did you know to stop the project and come to get waivers?

Mr. Cecil replied, Oldham County Staff reached out to us and made us aware that we needed to stop the project and come in and get waivers.

Commissioner Kraus asked, how many parking spaces are you asking for?

Mr. Cecil replied, 43 total.

Attorney Wade replied, 30 parking spaces are allowed but we are asking for an additional 13 spaces.

Commissioner Thompson asked, can you put in a rain garden or something to make up for that 3.1% additional impervious surface to mitigate that?

Attorney Wade replied, yes, we are open to conversations with the planning office to see what is best for the site.

Commissioner Thompson asked, the middle parking spaces with the curb, could you provide that with plantings to help with the impervious surface?

Mr. Cecil replied, we are not constructing the curb, it is only striping. And I am not sure currently if we are open to doing that, but we are willing to work with Oldham County staff.

County Engineer Silliman stated, I think it would be a great idea to consider converting the four spaces into an interior landscape area.

Planner Hine stated, there will be a landscape plan that is going to be required as part of this plan submittal.

Commissioner Hampton stated, I don't see how we can vote on anything other than what has been presented to us today.

Commissioner Douglas stated, if we can get the applicant to agree with the landscape island area on record that would suffice.

Attorney Wade asked, can we table this until the next meeting and address this issue and then provide a revised plan?

County Attorney Baxter stated, I believe the issue is that Mr. Cecil is not in a position to make that decision on his own, and if he makes this decision on his own then someone might be upset with him when he returns to his office.

Attorney Wade replied, yes.

County Attorney Baxter stated, I think this is a reasonable request to table, so the applicant can get some clarity and then come back here with a clear answer.

5. **Rebuttal evidence and Cross Examination by the Applicant: None**
6. **Rebuttal evidence and Cross Examination by the Opposition: None**
7. **Final statement of the Opposition: None**
8. **Final statement of the Applicant: None**

END OF PUBLIC HEARING

FINDINGS AND DECISIONS

Docket PZ-26-013

Waivers

7200 Hwy 329

Crestwood

Motion was made by Commissioner Douglas and seconded by Commissioner Hayes to table docket PZ-26-013 at 7200 Hwy 329, Crestwood.

The vote was as follows:

YES: Commissioners Allen, Allison, Douglas, Elder, Graham, Hampton, Hayes, Klingenfus, Kraus, Miller, Servis, and Thompson.

NO: None

ABSTAIN: None

ABSENT: Commissioner Davis and Marsh.

Motion approved on a vote of 12-0

.....
Secretary Christy Edgar called and read Docket:

DOCKET PZ-26-020 – An application has been filed by Straight Grain, LLC for a Zoning Map Amendment and Development Plan on property located at 7511 Hwy 329., Crestwood. The property is 1.23-acres and currently zoned C-2, Community Business District with a proposed zoning of C-3, General Business District.

1. Introduction of the new information by staff and questions by the Commission:

Planner Cayley Crum presented the following:

- Summary of the application.
- Case History (see Exhibit A, Staff Report dated August 25, 2026).
- Site history.
- Aerial Photos of the site.
- Photos of property.
- Received no letters of support or opposition.

Jim Silliman, Oldham County Engineer

- The land-disturbance will be greater than one acre so the applicant will need to obtain a KYR10 Permit from the Kentucky Division of Water and an Oldham County Stormwater Quality Management and Erosion Control permit from Oldham County Engineering Department.
- The applicant will need to apply for a road encroachment permit from KYTC.
- No traffic assessment nor a traffic impact study is required for this project.

Commissioner Dave Servis recused himself from this docket.

2. Presentation by the applicant or representative and others in support of the application:

Shawn Spalding, 400 W. Market Street, Louisville, was present and representing the applicant.

- Wanting to change the zoning from C-2 to C-3.
- The applicant wants to build professional offices in the front and a mill workshop in the back.
- There are no curb cuts currently and we plan on creating curb cuts on the site.

- Requesting a waiver for the sidewalk because there are no sidewalks in the area.
- The applicant wants to add 7,000 square feet to the rear of the property for a millwork shop and an additional 1,600 square feet to be added along the eastern portion of property for a loading dock.
- The site plan calls for limited access points along Highway 329 and Old Zaring Road which will increase safety from the current state of the property.
- Landscaping plan provides beautification at intersection of Hwy 329 and Old Zaring Road.

Clayton Langan, 1915 Production Dr., Louisville, was present and sworn in prior to presenting.

- We have been looking for a place in Oldham County to bring our business and our staff for the last seven years and this property is close to where I live.

3. Testimony and questions by those opposing the application:

Mitch McCoy, 7300 Old Zaring Rd, Crestwood, was present and sworn in prior to presenting.

- I am concerned about semi-trucks blocking Old Zaring Road.
Mr. Langan replied, on a weekly basis we will have deliveries for raw goods, lumber for construction of specialty woodworking and cabinetry. We do not use large semis to deliver these products, they are distributed in the form of a box trucks. We have provided an area in our rear parking lot for the truck to be unloaded and brought into our warehouse. We will not use Old Zaring Road to unload any truck.

4. Questioning of the applicant and those opposing the application by the Commission:

Commissioner Douglas asked, will there be landscape screening next to the neighbors that are zoned R-2?

Planner Hine replied, if that property is used residentially then they will need to provide screening. Also, we have found that this does not meet the non-residential subdivision standards to require sidewalks, so no waiver is needed.

5. Rebuttal evidence and Cross Examination by the Applicant: None

6. Rebuttal evidence and Cross Examination by the Opposition: None

7. Final statement of the Opposition: None

8. Final statement of the Applicant:

Attorney Spalding's final statement.

- We request and hope that this board will approve our applications.

END OF PUBLIC HEARING

Director Fischer summarized the docket.

FINDINGS AND DECISIONS
Docket PZ-26-020
Zoning Map Amendment
7511 Hwy 329
Crestwood

Motion was made by Commissioner Miller and seconded by Commissioner Hampton to recommend approval of the zoning map amendment located at 7511 Hwy 329, Crestwood to the Oldham County Fiscal Court because changing the zoning from C-2 to C-3 will comply with objectives of the Comprehensive Plan and it recognizes the changing environment within the area and the rezoning request is compatible with existing land use in the existing area. This motion also includes the following Binding Elements.

Binding Elements

1. The approval applies only to the plan presented at the August 25, 2026, Oldham County Planning Commission public hearing.
2. The plan must comply with all established federal, state and county ordinances and requirements and comply with all necessary easement restrictions at the time of construction plan approval.

The vote was as follows:

YES: Commissioners Allen, Allison, Douglas, Elder, Graham, Hampton, Hayes, Klingenfus, Kraus, Miller, and Thompson.

NO: None

ABSTAIN: None

ABSENT: Commissioner Davis, Marsh and Servis.

Motion approved on a vote of 11-0

FINDINGS AND DECISIONS
Docket PZ-26-020
Development Plan
7511 Hwy 329
Crestwood

Motion was made by Commissioner Miller and seconded by Commissioner Allison to approve the development plan for 7511 Hwy 329, Crestwood because it complies with objectives of the current comprehensive plan and the zoning ordinance. This motion also includes the following Binding Elements.

Binding Elements

1. The approval applies only to the plan presented at the August 25, 2026, Oldham County Planning Commission public hearing.
2. The applicant shall obtain all necessary permits and inspections from the appropriate agencies.
3. The applicant shall complete a consolidation plat prior to construction plan approval.

The vote was as follows:

YES: Commissioners Allen, Allison, Douglas, Elder, Graham, Hampton, Hayes, Klingenfus, Kraus, Miller, and Thompson.

NO: None

ABSTAIN: None

ABSENT: Commissioner Davis, Marsh and Servis.

Motion approved on a vote of 11-0

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Motion was made by Commissioner Allison and seconded by Commissioner Douglas to take a 10-minute recess starting at 10:20 a.m. Motion carried by unanimous voice vote.

Motion was made by Commissioner Miller and seconded by Commissioner Kraus to come back in session at 10:30 a.m. Motion carried by unanimous voice vote.

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Secretary Christy Edgar called and read Docket:

DOCKET PZ-26-021 – An application has been filed by Traditional Town, LLC for a Revised Development Plan on property located at 6212 Schuler Ln., Prospect. The property is 62.2-acres and zoned PUD, Planned Unit Development District known as Norton Commons Hamlet 3C.

1. Introduction of the new information by staff and questions by the Commission:

Planner Cayley Crum presented the following:

- Summary of the application.
- Case History (see Exhibit A, Staff Report dated August 25, 2026).
- Site history.
- Aerial Photos of the site.
- Photos of property.
- Received no letters in support or opposition.

Jim Silliman, Oldham County Engineer

- Since this is a revision to an already approved development plan, the traffic has already been addressed, and there is no additional traffic improvements needed.
- Storm water was addressed in the previous section, and this will require the permits and the construction plans to be submitted for our review and if they meet the requirements during the review then there will be no additional storm water detention required.

Commissioner Servis asked, how many lots?

Planner Crum replied, there are a total of 14 lots. There is an existing lot that is added to the 13 to make a total of 14 lots.

2. Presentation by the applicant or representative and others in support of the application:

Michael Swansburg, Swansburg & Smith PLLC, 117 W. Main Street, LaGrange, was present and representing the applicant.

- This is a revision to an already approved development plan.
- Lot 362 is a total of 6.88 acres, and we want to turn this one lot into 14 lots.
- This will all exist within the borders of lot 362 in the existing section 3 of Norton Commons.
- Proposing .65-acre park in the middle, with a one way in and out connecting to the remainder of Norton Commons.
- The total master plan has 2,654 total residential lots in Jefferson and Oldham County.
- The applicant is asking the Oldham County Planning Commission to essentially approve the transfer of 13 lots from the Jefferson County allotment to Section 3 of the Hamlet for a total of 270 lots within Oldham County.

3. Testimony and questions by those opposing the application: None

4. Questioning of the applicant and those opposing the application by the Commission:

Director Fischer asked, did the applicant come to a resolution with the fire department on the turning radius for their apparatus?

Matt Wolff, Sabak, Wilson & Lingo, Inc., 301 E. Main Street, Louisville, was present and sworn in prior to replying, we will have flush curbs on the inside, and we did confirm that the turns will work.

Director Fischer asked, how do we ensure that the transferred 13 lots from Jefferson County do not get built in Jefferson County?

Attorney Swansburg replied, the master plan only allows 2,880 lots total. The applicant does not plan on exceeding the 2,880 total lots. We will agree to the binding element that a total of 2,880 maximum lots be built.

Director Fischer asked, do you agree to the binding elements that this plan shall comply with the original Norton Commons Master Plan Development, and no construction can begin until fire hydrants are installed and operational?

Attorney Swansburg replied, yes.

Commissioner Allison asked, are the schools satisfied with the additional 13 houses?

Attorney Swansburg replied, my understanding is that it was reviewed during the TRC process and the 35-units requirement is consistent with the school board.

5. Rebuttal evidence and Cross Examination by the Applicant: None

6. Rebuttal evidence and Cross Examination by the Opposition: None

7. Final statement of the Opposition: None

8. Final statement of the Applicant:

Attorney Swansburg's final statement:

- We are asking for an amendment to a previously approved master plan for section 3 portion of the Hamlet within Oldham County.
- Adding 13 lots to a total of 14 within 6.88 acres.

END OF PUBLIC HEARING

Director Fischer summarized the docket.

FINDINGS AND DECISIONS

Docket PZ-26-021

PUD

Revised Development Plan

6212 Schuler Lane

Prospect

Motion was made by Commissioner Thompson and seconded by Commissioner Hampton to approve the revised PUD Development Plan located at 6212 Schuler Lane, Prospect, because it complies with objectives LU1-1 and LU1-4 of the comprehensive plan, the zoning ordinance and the subdivision regulations and it complies with the master plan of Norton Commons and it preserves the natural beauty and topography of Oldham County by maintaining the green trees and the nature surrounding the area. This motion includes the following Binding Elements.

Binding Elements

1. The approval applies only to the plan presented at the August 25, 2026, Oldham County Planning Commission public hearing.
2. There shall be no subdivision of any lot into a greater number of lots without review by the Oldham County Planning Commission.
3. The cumulative phasing plan shall limit the number of dwelling units to thirty-five (35) per year beginning with the first record plat.
4. All street trees and landscaping, including those in the right-of-way, shall be maintained by the developer and/or homeowner's association in perpetuity, even if removed or damaged by the County during maintenance of right-of-way tasks. The location of street trees are to be reviewed and approved by the County Engineer and Planning Staff.
5. The preliminary plan must comply with all established federal, state and county ordinances and requirements at the time of construction plan approval.
6. The preliminary plan shall comply with the approved Norton Commons master plan development and any amendments approved over time.
7. No construction shall begin until fire hydrants are installed and operational.
8. The maximum number of lots will not be exceeded per the original Norton Commons master plan.

The vote was as follows:

YES: Commissioners Allen, Allison, Douglas, Elder, Graham, Hampton, Hayes, Klingenfus, Kraus, Miller, Servis, and Thompson.

NO: None

ABSTAIN: None

ABSENT: Commissioner Davis and Marsh.

Motion approved on a vote of 12-0

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Secretary Christy Edgar called and read Docket:

DOCKET PZ-26-022 – An application has been filed by Rose Island Glen II, LLC for a Preliminary Subdivision Plan for 64 lots on property located at Rose Island Rd., Prospect. The property is 102-acres and zoned R-2, Residential District, and CO-1, Conservation/ Residential District.

1. Introduction of the new information by staff and questions by the Commission:

Planner John Hine presented the following:

- Summary of the application.
- Case History (see Exhibit A, Staff Report dated August 25, 2026).
- Site history.
- Aerial Photos of the site.
- Photos of property.
- Received letters in opposition.

Jim Silliman, Oldham County Engineer

- Since the applicant reduced the lots from 94 lots to 64 lots then the development will not require a traffic impact study.

Charlie Ward, Oldham County Health Department, was present and sworn in prior to presenting.

- In 2021, I did a preliminary site evaluation and found that this location has sandy-loam soils and would be suitable for on-site sewage disposal septic systems.
- As someone purchases the lot, I will be the first one on the lot to let them know where they can install the septic and I will be back out there to do a final inspection to make sure the septic system was installed correctly.

Director Fischer asked, can you explain why there is a minimum of one acre for septic property.

Mr. Ward replied, in 1989 an ordinance was put in place for septic properties that they must be a minimum of one acre and it's because we must have a repair area on the property for the septic.

Commissioner Allison asked, how is the repair area documented, so in the future no buildings can be placed in that area?

Mr. Ward replied, we have documentation, and every building application that comes into the permits office must get approval letter from me before the permit is issued.

2. Presentation by the applicant or representative and others in support of the application:

John Talbott, Bardenwerper, Talbott & Pregliasco, PLLC, 1000 N. Hurstbourne Pkwy, Louisville, was present and representing the applicant.

- The applicant has reduced the development plan from 94 lots to 64 lots.
- We have already agreed to improve the safety of Rose Island Road by removing some trees and will widen this subdivision entrance along with fixing drainage ditch.
- The development will have two entrances off Harmony Village Road.
- The 2021 traffic study is still valid.

Kevin Young, Land Design & Development, 503 Washburn, Louisville, was present and sworn in prior to presenting.

- On the new plan we have green space and we have increased the right of way from 50 feet to 60 feet.
- The 60 feet increased right of way will allow for roadside swales instead of curb and gutter.
- There is a 25-foot open space, and we will add an additional 25 foot “no disturb” area along Rose Island Road where the lots abut this space.
- We will consult with Kentucky Department of Transportation about the removal of the trees from Rose Island Road.
- We will improve the drainage situation for Mayo Lane and incorporate it into our drainage within this development.
- We will be adding three-foot shoulders on the east and west side of Harmony Village Drive on Rose Island Road.

Mary Kuehne, 1206 Riverside Dr., Prospect, was present and sworn in prior to presenting.

- I am in favor of this development.

Don Smith, 1132 Riverside Dr., Prospect, was present and sworn in prior to presenting.

- I believe this will be the best use of the property, and I am in favor of this development.

Cindy Harbin, 1220 Riverside Dr., Prospect, was present and sworn in prior to presenting.

- I agree this is the best use of this property and the size of homes that are being proposed.

- I would like a binding element that says only 10 homes are being built per year.

George Brakmeier III, 1204 Riverside Dr., Prospect, was present and sworn in prior to presenting.

- I am concerned about the property being developed; however, I would prefer to look at this development versus 400 houses on that property.

3. Testimony and questions by those opposing the application:

Hank Graddy, W.H. Graddy & Associates, 137 North Main St., Versailles, was present and representing Geoff Schutz, Robin Cleland and other neighbors.

- Sewers are available within a ½ mile of this tract.
- Rose Island Road is not safe for any new major subdivision.
- Harmony Elementary currently exceeds capacity.
- The developers have failed to submit a stormwater management plan, and no evidence has been presented of any use of green infrastructure methods or features.

Michael Harris, Professional Engineer, Prime AE, 9300 Shelbyville Road, Louisville, was present and sworn in prior to presenting.

- This development is within ½ mile radius of a sewer system and should be connected to sewers instead of being on septic tanks.

Adam Kirk, Traffic Engineer, 137 McClelland Springs Dr., Georgetown, was present and sworn in prior to presenting.

- Rose Island Road to Hwy 1793 in the past five years has had 39 crashes, 2 fatalities, and 10 serious injuries.
- As the traffic increases there will be a higher number of crashes.
- I would recommend widening lanes from 9 feet to 11 feet and constructing 2-foot shoulders for improvements.

Geoff Schutz, 14404 Oldham Acres Road, Prospect, was present and sworn in prior to presenting.

- Very important that this board needs to look at the ½ mile radius of sewers.
- I am concerned about the safety of extra traffic on Rose Island Road, this road needs major work, and I would like to see this tabled until the road is fixed.
- Schools are over capacity.

Leslie Wright, 14407 Oldham Acres Road, Prospect, was present and sworn in prior to presenting.

- The detention basin is located very close to my backyard, and it will be draining into a small creek that runs under Oldham Acres Road and what would it do to this road.
- The egress has been changed, and I would like to know if fire apparatus can make the turn?

William Schmidt, 300 Masonic Homes Drive, Louisville was present and sworn in prior to presenting.

- The fact that the state has allotted money to do a study on Rose Island Road should tell you that this road is dangerous.

Paul Zurkuhlen, 13927 Harbour Place, Prospect, was present and sworn in prior to presenting.

- Concerned about the safety of Rose Island Road.
- What are the plans for the undeveloped part of the tract?

Herbert Stewart, 3028 Belknap Beach Road, Prospect, was present and sworn in prior to presenting.

- I have been a UPS driver for 30 years and Rose Island Road is one of the most dangerous roads that I have ever driven as a UPS driver.

Gia Baker, 14509 Oldham Acres Road, Prospect, was present and sworn in prior to presenting.

- Concerned about the detention basin being changed to our side of the road, and I am concerned about the water running over the road.
- Will it be properly fenced off for safety.

Joyce Bannon, 14513 Oldham Acres Road, Prospect, was present and sworn in prior to presenting.

- I am concerned about Huckleberry Creek overflowing the road.
- The culvert is in bad shape now.

Motion was made by Commissioner Kraus and seconded by Commissioner Allison to extend the clock for two minutes. Motion carried by unanimous voice vote.

Mr. Schutz continued.

- Concerned about the flooding over the road from the runoff of this proposed subdivision.

Motion was made by Commissioner Thompson and seconded by Commissioner Allison to take a 5-minute recess starting at 1:05 p.m. Motion carried by unanimous voice vote.

Motion was made by Commissioner Hampton and seconded by Commissioner Elder to come back in session at 1:10 p.m. Motion carried by unanimous voice vote.

4. Questioning of the applicant and those opposing the application by the Commission:

Commissioner Thompson asked, we have testimony on the conflicting distance to the sewer, how do we know which one to base our decision on?

County Attorney Baxter replied, that would be up to you. You are the finder of fact as it relates to this issue.

Director Fischer read section 7.4 of the subdivision regulations.

Commissioner Douglas asked, questions regarding detention basins.

County Engineer Silliman replied, when we review the construction plans the intent of the detention basin is to regulate the storm water, so it does not discharge at a rate that's higher than the current flow.

Commissioner Douglas asked, are some of the lots under one acre?

Mr. Young replied, we are mandated to provide one acre lots and if there is one under one acre then we will correct it to be one acre.

Commissioner Servis asked, if this development has been put on sewer system, there will be a lot of work down stream for this and who will bear the cost for that?

Director Fischer asked, did the school board provide a new capacity sheet or are they going from the existing one that was approved in 2021?

Planner Hine replied, Mr. Williams said he will go by the 2021 capacity of 35 permits per year.

5. Rebuttal evidence and Cross Examination by the Applicant:

Attorney Talbott's rebuttal statement.

- The sewers that are along Rutland Road are up a hill of about 180 feet.
- There is no accessible sewer connection within a ½ mile radius of this proposed development.

6. Rebuttal evidence and Cross Examination by the Opposition:

Attorney Graddy's rebuttal statement.

- The issue is, are sewers reasonably accessible to the 64 lots that are in the 102 acres that is part of the 217-acre parent tract and that has already been determined to have sewers reasonably available going to the manhole.
- Rose Island Road is not safe for any new major subdivision currently.

7. Final statement of the Opposition: None

8. Final statement of the Applicant:

Attorney Talbott's final statement.

- The opposition does not want any development on that parcel of land.
- This development is a terrific plan, very conservative and a top-notch development.

END OF PUBLIC HEARING

Director Fischer summarized the docket.

FINDINGS AND DECISIONS Docket PZ-26-022 Preliminary Subdivision Plan 1700 Block of Rose Island Road Prospect

Motion was made by Commissioner Hampton and seconded by Commissioner Elder to approve the preliminary subdivision plan for 1700 Block of Rose Island Road, Prospect, because it complies with objectives R-2 and CO-1 of the comprehensive plan, the zoning ordinance and the subdivision regulations based on the testimony we heard today. This motion also includes the following Binding Elements.

Binding Elements

1. The approval applies only to the plan presented at the August 25, 2026, Oldham County Planning Commission public hearing.
2. There shall be no subdivision of any lot into a greater number of lots without review by the Oldham County Planning Commission.
3. The preliminary plan must comply with all established federal, state, and county ordinances and requirements at the time of construction plan approval.
4. The maximum number of building permits per year is 10.
5. The following four specific improvements to modernize Rose Island Road (KY 3222) must be made in accordance with the Traffic Impact Study:
 - a. On the west side of Rose Island Road, add a 3' shoulder for 150' on Rose Island Road in both directions at Harmony Village Road, that will taper to the existing pavement edge. These improvements shall be made as a part of Phase I.
 - b. Correct the storm water system at Mayo Lane to prevent storm water from overtopping Rose Island Road. These improvements shall be made as a part of Phase I.
 - c. Remove four (4) trees within the Rose Island Road right-of-way as designated by the Kentucky Transportation Cabinet for clear zone improvement.
 - d. Widen existing Harmony Village Road from Rose Island Road to the proposed subdivision entrance and taper to the existing Harmony Village Road pavement.
6. The proposed development must comply with the Oldham County Fire Hydrant Ordinance.
7. A landscape/buffer plan shall be submitted and approved prior to the issuance of building permits

8. No lots shall have driveway access to Rose Island Road or Harmony Village Road.
9. All comments made by the reviewing agency must be met.
10. Street lighting to be LG&E Dark Sky fixtures.
11. The developer shall be restricted to the following site access timing:
 - a. Initial site development (grading, rod, etc.) shall only occur between the hours of 8 AM to 6 PM Monday through Friday and 9 AM to 5 PM on Saturday. No construction on Sunday.
 - b. During home construction, builders' construction activities shall be limited to 7 AM to 6 PM Monday through Saturday. No construction on Sunday.
12. Construction plans shall not be approved until all required permits from the US Army Corp of Engineers, KY Division of Water, and other Oldham County agencies have been received by the Oldham County Engineering Department.
13. All detention basins shall be regularly maintained and kept free from sediment and debris, especially after storm or flooding events.
14. For construction plan approval, the applicant shall provide evidence that the performance of the basins for the required return events is not adversely affected by the water surface elevation (rise and fall) of the adjoining floodway and floodplain.
15. An as-built survey of the detention basins will be prepared to be assured they are built correctly.
16. Post development flow shall not exceed pre-development flow leaving the site at currently proposed outfalls.
17. During construction, temporary basins shall be used to control sediment and stormwater runoff to adjoining properties.
18. Lots 1-14 will provide a 25' non-disturbance area along the rear property line except where Mayo Lane drainage improvements are required to be constructed.
19. Lots 41-45 shall provide a 25' non-disturbance area along their rear property line.

The vote was as follows:

YES: Commissioners Allen, Allison, Douglas, Elder, Graham, Hampton, Hayes, Klingenfus, Kraus, Miller, Servis, and Thompson.

NO: None

ABSTAIN: None

ABSENT: Commissioner Davis and Marsh.

Motion approved on a vote of 12-0

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Other Business: None

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 There being no further business, the Planning Commission meeting adjourned at 2:10 p.m.

The next regular meeting will be on Tuesday, September 22, 2026, at 9:00 a.m. and will be held in the Oldham County Fiscal Court courtroom at 100 W Jefferson Street, La Grange, 40031.

Approved:

A handwritten signature in dark ink, appearing to be 'Katie', written over a horizontal line.

Katie Nasser, Chair

Respectfully Submitted:

A handwritten signature in dark ink, appearing to be 'Christy Edgat', written over a horizontal line.

Christy Edgat, Secretary